

May 4, 2012



U.S. Department
of Transportation

East Building, PHH-30
1200 New Jersey Avenue S.E.
Washington, D.C. 20590

**Pipeline and Hazardous
Materials Safety Administration**

DOT-SP 10898
(TENTH REVISION)

(FOR RENEWAL, SEE 49 CFR § 107.109)

1. GRANTEE: (See individual authorization letter)
2. PURPOSE AND LIMITATION:
 - a. This special permit authorizes the transportation in commerce of a Division 2.2 material (nitrogen) in diaphragm, bladder and piston type accumulators, subject to the limitations and special requirements specified herein. This special permit provides no relief from any Hazardous Materials Regulations (HMR) other than as specifically stated. The most recent revision supersedes all previous revisions.
 - b. The safety analyses performed in development of this special permit only considered the hazards and risks associated with transportation in commerce.
 - c. Unless otherwise stated herein, this special permit consists of the special permit authorization letter issued to the grantee together with this document.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR § 173.302a(a)(1) in that a non-DOT specification packaging is not authorized, except as specified herein.
5. BASIS: This special permit is based on the application of Hydac Corporation dated August 23, 2010 and additional information dated February 28, 2011, March 9, 2011, June 24, 2011, September 29, 2011, March 28, 2012, and April 5, 2012, submitted in accordance with § 107.105 and the public proceeding thereon.

6. HAZARDOUS MATERIALS (49 CFR § 172.101):

Hazardous Materials Description			
Proper Shipping Name	Hazard Class/ Division	Identification Number	Packing Group
Nitrogen, compressed	2.2	UN1066	N/A

7. SAFETY CONTROL MEASURES:

a. PACKAGING - Packaging prescribed is a steel hydraulic accumulator designed and fabricated in accordance with Section VIII, Division 1 of the ASME Code and the drawings and specifications on file with the Approvals and Permits Division. All accumulators with an inside diameter greater than 6 inches are ASME Code "U" stamped. In addition, the accumulators must be in conformance with the following design parameters:

(1) A welded diaphragm accumulator having a capacity of not over 1 gallon, complying with HYDAC Corporation Series SBO 100, SBO 140, SBO 200, SBO 210, SBO 250, and SBO 330. The accumulator must have a design pressure not exceeding 4,700 psi, and a minimum 4 to 1 burst to design pressure ratio.

(2) A seamless bladder accumulator having a capacity of not over 15 gallons, complying with HYDAC Corporation Series SB 330 and SB 600. The accumulator must have a design pressure not exceeding 5,000 psi, and a minimum 4 to 1 burst to design pressure ratio.

(3) A seamless piston accumulator having a capacity of not over 114 gallons, complying with HYDAC Corporation Series SK 210 and SK 350. The accumulator must have a design pressure not exceeding 3000 psi, and a minimum 3.5 to 1 burst to design pressure ratio.

(4) A seamless piston accumulator having a capacity of not over 114 gallons, complying with HYDAC Corporation Series SK 600. The accumulator must have a design pressure not exceeding 5075 psi, and a minimum 3.5 to 1 burst to design pressure ratio.

(5) Each accumulator must be constructed to relieve pressure without bursting in a fire or must be equipped with a safety device as required in § 173.301(f).

b. TESTING - Each accumulator must be tested without evidence of failure or damage, to at least 1 1/2 times the design pressure prior to each refill and reshipment.

c. MARKING - Each accumulator must be shipped as an inside packaging in accordance with § 173.301(a)(9). Each outside container must be marked "DOT-SP 10898" and "NITROGEN-HYDRAULIC ACCUMULATORS".

d. OPERATIONAL CONTROLS -

(1) The charged pressure of each accumulator at 70°F for shipment must not exceed 70 percent of the design pressure.

(2) Each accumulator up to and including a 2.5 gallon capacity must be shipped in strong outside packaging in accordance with § 173.301(a)(9). Units above 2.5 gallon capacity must be securely strapped to a wooden pallet.

8. SPECIAL PROVISIONS:

a. A person who is not a holder of this special permit who receives a package covered by this special permit may reoffer it for transportation provided no modification or change is made to the package and it is reoffered for transportation in conformance with this special permit and the HMR.

b. A current copy of this special permit must be maintained at each facility where the package is offered or reoffered for transportation.

9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle, rail freight, cargo vessel and cargo aircraft only.

10. MODAL REQUIREMENTS: A current copy of this special permit must be carried aboard each cargo vessel or aircraft used to transport packages covered by this special permit. The shipper must furnish a current copy of this special permit to the air carrier before or at the time the shipment is tendered.

11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this special permit and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:

- o All terms and conditions prescribed in this special permit and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
- o Persons operating under the terms of this special permit must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.
- o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this special permit must receive training on the requirements and conditions of this special permit in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this special permit, including display of its number, when this special permit has expired or is otherwise no longer in effect.

Under Title VII of the Safe, Accountable, Flexible, Efficient Transportation Equity Act: A Legacy for Users (SAFETEA-LU)- 'The Hazardous Materials Safety and Security Reauthorization Act of 2005' (Pub. L. 109-59), 119 Stat. 1144 (August 10, 2005), amended the Federal hazardous materials transportation law by changing the term "exemption" to "special permit" and authorizes a special permit to be granted up to two years for new special permits and up to four years for renewals.

12. REPORTING REQUIREMENTS: Shipments or operations conducted under this special permit are subject to the Hazardous Materials Incident Reporting requirements specified in 49 CFR §§ 171.15 Immediate notice of certain hazardous materials incidents, and 171.16 Detailed hazardous materials

incident reports. In addition, the grantee(s) of this special permit must notify the Associate Administrator for Hazardous Materials Safety, in writing, of any incident involving a package, shipment or operation conducted under terms of this special permit.

Issued in Washington, D.C.:



for Dr. Magdy El-Sibaie
Associate Administrator for Hazardous Materials Safety

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Pipeline and Hazardous Materials Safety Administration, Department of Transportation, Washington, D.C. 20590. Attention: PHH-31.

Copies of this special permit may be obtained by accessing the Hazardous Materials Safety Homepage at http://hazmat.dot.gov/sp_app/special_permits/spec_perm_index.htm Photo reproductions and legible reductions of this special permit are permitted. Any alteration of this special permit is prohibited.

PO: BrMoore